NOMUSA NKALA

Versus

ERIC CHARLES SIBANDA

AND

REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 23 JUNE AND 8 JULY 2026

Opposed application

S. Shenje, for the applicant
N. Ncube, for the 1st respondent
No appearance for the 2nd respondent

KABASA J*:* This is an opposed application which seeks to compel the first respondent to transfer a half share of an immovable property to the applicant consequent to the terms of the parties' divorce settlement.

The order sought is couched as follows:-

"1. The 1st respondent be and is hereby ordered to transfer to the applicant his half share in the immovable property known as stand number 158 Woodville North of Subdivision A of Plot 1A Woodville Estate jointly held by the parties under Deed of Transfer No. 1380/20 dated 16 December 2020.

2. 1st respondent be and is hereby ordered to sign all such papers and perform all acts necessary to effect such transfer within 10 days of service of this order upon him and failing compliance, leave be and is hereby granted for the Sheriff of the High Court, Bulawayo to act in place of the 1st respondent by signing all necessary papers to effect transfer of the 1st respondent's half share in the property to the applicant.

3. Upon simultaneous transfer of the 1st respondent's half share as anticipated in paragraph 2 above the applicant shall pay to the 1st respondent his half share in the sum of US$25 000 based on the valuation report dated 11 December 2025 compiled by Knight Frank Zimbabwe.

4. The 1st respondent shall pay costs of suit on the legal practitioner and client scale."

The application was opposed by the 1st respondent. The 2nd respondent has not participated in the matter, an indication that he will abide by the decision of the court.

BACKGROUND

The background to the application is this:

The first and second respondents divorced on 31 July 2025. In paragraph 2 and 3 of the order the court ordered as follows:-

> "2. The immovable property being stand number 158 Woodville North of subdivision A of plot 1A Woodville Estate be shared at a 50/50 ratio between the plaintiff and the defendant.
>
> 3. The plaintiff be awarded the right to buy off the defendant (sic) of his share of the immovable property within 6 months of date of judgment. Failure by plaintiff to buy defendant out within 6 months will lead to the property being sold to the best advantage to the parties and the proceeds therefrom shared in the 50:50 ratios after the deductions relating to the sale of the property have been made."

In a letter dated 14 July 2025 and I must say this date does not relate to the date of the divorce decree since the divorce was granted on 31/07/2025, the applicant, who was the plaintiff in HCBF 181/24, gave the 1st respondent the option of choosing from three reputable estate agents to carry out the evaluation, pursuant to the divorce order.

The response to this letter was not filed by either party but from the communication which followed thereafter, the 1st respondent's choice was Knight Frank.

"Our client advises that he is comfortable with the parties using Knight Frank for the valuation and you may proceed to instruct Knight Frank for the valuation," was the response from 1st respondent's legal practitioner. The applicant thereafter intimated that this estate agent was expensive and sought to have the 1st respondent choose from the remaining 2 options. There was no response to that communication.

The applicant proceeded to engage Knight Frank who carried out an evaluation of the property and put the value at US$50 000. The applicant's legal practitioners subsequently wrote to the 1st respondent's legal practitioners advising them that pursuant to the evaluation they were now holding the 1st respondent's half share and requested for the 1st respondent's national identity card for the purposes of processing the capital gains tax clearance and further

advising that the half share was to be released upon signing of transfer papers by the 1st respondent. The letter was dated 19 December 2025.

The response was essentially a refusal to accept the half share because the amount had not been communicated. The 1st respondent also took exception to what he termed as conditions which were not as per the court order. The objection related to the fact that he was being asked to sign transfer papers before receiving the half share.

The parties haggled over this resulting in an impasse which saw the applicant filing the application I am now seized with.

Applicant's Submissions

Counsel for the applicant's argument was that the property was evaluated after the 1st respondent chose Knight Frank from the 3 options suggested by the applicant. That consent was not revoked and the applicant's initial response to the effect that this estate agent was expensive and requesting the 1st respondent to choose from the remaining 2 options did not amount to a revocation of the consent obtained from the 1st respondent. The evaluation was therefore conducted by a reputable estate agent who the 1st respondent had chosen.

After such evaluation the applicant tendered half of the amount and the letter informing the 1st respondent of the position was sent on 17 December 2025, which was within the 6 month period.

The applicant therefore complied with the terms of the court order. The assertion by the 1st respondent that the value is low is merely speculative. The counter valuation by Gwande Properties which the 1st respondent sought to rely on was way before the divorce order was granted. Such valuation was never communicated to the applicant. It was an evaluation that was not conducted as a result of the court order and which did not involve the applicant's input.

The reference to 1st respondent signing transfer papers before release of the money did not amount to a condition meant to vary the court order but is reflective of standard conveyancing procedures. The money was available, held in trust and to be released upon transfer of the ½ share to the applicant.

The applicant therefore complied with the terms of the court order and is entitled to the order sought, so counsel argued.

Respondent's Submissions

On the contrary, counsel for the 1st respondent argued that since this is an application for a mandatory interdict, the requirements thereof must be met and the applicant has not met these requirements.

The applicant was given the option to buy out the 1st respondent within 6 months of the granting of the order. The order was granted on 31/7/2025 and 6 months lapsed on 31/1/26. As at the date of hearing the applicant had failed to buy out the 1st respondent and that right has therefore lapsed.

When the applicant tendered the 50% amount she put conditions and that militated against the acceptance of the money by the 1st respondent, so counsel argued.

Analysis

The court order was silent as to who was to conduct the valuation process. I must take this opportunity to exhort legal practitioners to always ensure divorce orders capture every conceivable issue with regards to property sharing and the modalities thereto. Where parties are to share on a 50/50 ratio and the property is to be valued, it must always be clear that the parties are to agree on the estate agent, failing which the Registrar appoints one from the list of estate agents, with time lines explicitly spelt out. Such an order avoids the pitfalls that often bedevil parties where issues, as the one *in casu*, arise.

With that said, the court order was clear as to the sharing of the property and the right to buy out the 1st respondent. Estate agents are in the business of providing valuation reports, *inter alia*. In the absence of an express provision in the court order, the applicant's decision to come up with 3 reputable estate agents cannot be faulted. It was from the three that the 1st respondent chose Knight Frank. That signaled his consent with regards the choice of an estate agent. Such consent was not revoked.

The use of Knight Frank was therefore not arbitrary. The valuation by Knight Frank was therefore above board. One who alleges must prove (See *UZ* v *Mutasa & Ors* S 157/93). The 1st respondent made bald and unsubstantiated allegations of fraud but such was not proved. The fact that Knight Frank's valuation was not what 1st respondent wanted does not make it fraudulent.

In affording the 1st respondent the right to choose his preferred estate agent, the applicant was seeking to ensure the right afforded to her in the court order would be realised. It was a step towards ensuring the implementation of the terms of the court order.

This was a court order which spelt out the ancillary issues following the grant of a decree of divorce. The implementation thereof does not change the genesis of the order. This is therefore not a mandatory interdict (*Gold Reef Mining (Pvt) Ltd* v *Mnjiva Consulting Engineers (Pty) Ltd & Anor* HH 632-15) requiring the satisfaction of the requirements to be met when a litigant seeks such an interdict. The argument by counsel for the 1st respondent is misplaced and accordingly rejected.

The property's evaluation was done within the 6 month period, the tender of the 50% of the evaluated amount was done within the 6 month period. This was therefore in compliance with the 31/7/2025 court order.

The reference by counsel for the 1st respondent to the remarks in *Pona* v *Mlambo & Anor* HB 33-02 to the effect a party should discharge their obligations first before requiring reciprocity from the other party is misplaced. The terms and conditions of the court order were complied with. The same point was made in *Muusha* v S*aruchera* HH 118-12 where the court stated that court orders regulate parties' determined rights and must be complied with. Where compliance is an issue parties do not vary the court order on their own but approach the court for such variation.

In casu there was no variation of the court order. The terms of the court order were complied with. When the amount of US$25 000 was tendered, which represented the 50% share, the applicant effectively complied with the court order.

The valuation could only have been competently done after the issuance of the court order and not before. This puts paid to the Gwande Properties evaluation argument.

An evaluation is done by those qualified to conduct such evaluation. The 1st respondent sought to rely on offers made by some individuals who wanted to buy the property. The offers the 1st respondent sought to rely on, obtained from these random individuals, cannot possibly supplant an evaluation done by an estate agent. The offers made by these potential buyers do not in any way supplant the professional evaluation conducted by an estate agent.

The time limit per the court order was adhered to. It therefore cannot be said the applicant's right lapsed after the lapse of 6 months. That right was exercised within the 6 month period.

I turn now to the argument that there was a condition attached to the tender of the US$25 000. I did not hear counsel controverting the standard conveyancing practice. The applicant tendered the money which was kept in trust by the legal practitioner. The mere fact that the legal practitioner asked for the 1st respondent's identity card for purposes of processing the capital gains tax and subsequently effecting the transfer of his ½ share was meant to implement the order not to vary it. This was therefore not a condition incapable of compliance nor was it a variation of the court order. There was no addition of terms of the order but this was enabling compliance with the order.

The process of signing of the necessary papers to effect transfer could have been included in the order but the lack of an express reference to such is neither here nor there. The inclusion would have been convenient and would have avoided this current application and that is all there is to it.

The 1st respondent can therefore not seek to argue that 6 months have lapsed when he is the one who stalled by not uplifting the tendered amount and surrendering his identity card to facilitate the transfer as per the court order. Once the amount representing the ½ share was tendered, the respondent was supposed to co-operate not stall the process.

That said I conclude that the evaluation of the property was done by a recognized estate agent in pursuance of a court order, which although it did not specifically mention the appointment of an estate agent, did make such necessary in order to give effect to the order.

The ½ share was tendered within the 6 months as provided in the court order. The applicant therefore did all that was expected of her and exercised the right she obtained by virtue of the court order.

I am therefore persuaded by counsel for the applicant's argument. The applicant has made a case for the relief sought.

COSTS

But for the 1st respondent's unreasonable conduct, the applicant would not have been put out of pocket. The 1st respondent's conduct is deserving of censure and so an award of costs at a punitive scale is warranted.

DISPOSITION

The applicant was given the right to buy out the 1st respondent within 6 months of the grant of the divorce decree. The divorce decree was granted on 31/7/25. The 6 months would have lapsed on 31/1/2026. The tender of the 50% of the value of the property was on 19/12/25. It was therefore within the 6 month period.

In the result I make the following order:-

1. The 1st respondent be and is hereby ordered to transfer to the applicant his half share of stand number 158 Woodville North of Subdivision A of Plot 1A Woodville Estate, held under Deed of Transfer No. 1380/29.

2. The 1st respondent shall sign all such papers as are necessary and perform all such acts as are necessary to effect such transfer, within 10 days of service of this order, failing which the Deputy Sheriff is authorized to act in 1st respondent's stead.

3. The applicant shall, upon signing of transfer papers by either the 1st respondent or the Sheriff, pay to the 1st respondent USD25 000, which represents the half share of the aforementioned immovable property, based on the valuation report by Knight Frank Zimbabwe, dated 11 December 2025

3. The 1st respondent shall pay costs at legal practitioner-client scale.

Shenje and Company, applicant's legal practitioners
Dube Legal Practice, 1st respondent's legal practitioners